

The court has already preliminary approval of the class representative's incentive payment of \$10,000. Given the lack of objections and opt out requests from the class, it appears that no one in the class objects to the payment to the class representative. Therefore, the court will grant final approval of the class representative payment in the amount of \$10,000.

5. Payment to Class Administrator

Apex Class Action LLC incurred costs of \$6,350 to administer the settlement. The court has already granted preliminary approval of the class administrator payment of up to \$8,000. No class members have objected to the payment to the administrator. Therefore, the court will grant final approval of the \$6,350 payment to the settlement administrator.

6. PAGA Settlement

The court intends to grant final approval of the PAGA settlement of \$8,000. The amount of the settlement is fair, reasonable, and adequate in light of defendant's potential exposure and the risks and costs of litigating the case to trial, as well as the danger that the court might reduce any penalties even if plaintiff does prevail at trial. Also, the LWDDA has been given notice of the settlement, and it has not objected to the settlement. Therefore, the court will grant final approval of the PAGA settlement.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 14, 2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Hughey v. Promesa Apartments***
Superior Court Case No. 25CECG05700

Hearing Date: July 15, 2026 (Dept. 403)

Motion: By Defendant Fresno 1101 Parkway, LP on Demurrer to the Complaint

Tentative Ruling:

To sustain defendant Fresno 1101 Parkway, LP's general and special demurrers to the complaint with leave to amend. (Code Civ. Proc., § 430.10, subd. (e) and (f).) Plaintiffs are granted 10 days leave to file the First Amended Complaint, which will run from service by the clerk of the minute order. New allegations/language must be set in **boldface** type.

***If oral argument is timely requested, such argument will be heard
on Thursday July 16, 2026 at 3:30 pm.***

Explanation:

Defendant Fresno 1101 Parkway, LP (sued erroneously as Promesa Apartments) ("Defendant") demurs to the complaint of plaintiffs, Angela Hughey and Crystal Baker, ("Plaintiffs"). Plaintiffs did not file an opposition.

Meet and Confer

The demurring party must meet with the opposing party, in person, by telephone, or by video conference prior to filing a demurrer and file and serve with the motion a declaration detailing the meet-and-confer efforts. (Code Civ. Proc., § 430.41, subd. (a).) Defendant attempted to call Plaintiffs multiple but was unable to reach them or receive any response from Plaintiffs. (Burns Decl., ¶ 2.) Defendant has met the meet and confer requirement

Failure to State Facts Sufficient to Constitute a Cause of Action

The function of a demurrer is to test the sufficiency of a plaintiff's pleading by raising questions of law. (*Plumlee v Poag* (1984) 150 Cal.App.3d 541, 545) The truth of the facts alleged in the complaint are assumed true as well as the reasonable inferences that may be drawn from those facts. (*Miklosy v. Regents of University of California* (2008) 2 Cal.4th 876, 883; see also *Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1168 [actual reliance in support of a fraud claim reasonably inferable from the plaintiff's complaint]; Code Civ. Proc., 452 ["In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties."].)

A general demurrer, “admits the truth of all material factual allegations in the complaint;” the plaintiff’s “ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496; *Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 190 [“We assume the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.”].)

Plaintiffs’ complaint was filed using Judicial Council Form *COMPLAINT – Contract (PLD-C-001)* (“PLD-C-001”). Item 8. of PLD-C-001 states “The following causes of action are attached and the statements above apply to each”. PLD-C-001 then lists possible causes of action and boxes to be marked indicating that cause of action applies. Plaintiffs did not mark any of the potential causes of action. Further, Plaintiffs’ complaint contains no factual information about the incident leading to filing the complaint or any specific facts other than naming the person Plaintiffs are suing.

Defendant contends that Plaintiffs have both failed to state a cause of action and have failed to plead sufficient facts to be a cause of action. Defendant is correct. Accordingly, Defendant’s demurrer is sustained with leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 14, 2026.
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